NewsBank inc.

Newsom signs law to prevent California schools from serving food with certain additives

October 4, 2024 | Food Safety News (USA)
Author: Dan Flynn | Section: News | 755 Words
OpenURL Link

It took a few days, but California Governor Gavin Newsom has signed the first-of-its-kind ban on six harmful dyes in school food.

The new law prohibits public schools from serving food and beverages containing synthetic colorings, which California lawmakers believe are linked to neurobehavioral issues experienced by some children.

Gov. Newsom took about a month to sign AB2316, which the California Legislature unanimously passed in early September

"Toxic dyes in food that put kids at higher risk for hyperactivity and other neurobehavioral issues that interfere with learning have no place in our schools," said Brian Ronholm, food policy director at Consumer Reports. "We've known for years that synthetic food dyes endanger our health, but the FDA has failed to take action to protect the public. California's landmark new law will help ensure that kids are not exposed to harmful dyes in food at schools that can endanger their health."

Consumer Reports has also launched a petition calling on the nation's biggest school lunch providers to remove these harmful chemicals from the food they provide to schools nationwide.

Assemblymember Jesse Gabriel (D-Encino) authored the California law, which bans Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2 and Green Dye No. 3. The chemicals have been found to cause neurobehavioral problems in some children.

Last year, Gabriel successfully authored, and Newsom signed into law, the California Food Safety Act, which banned potassium bromate, propylparaben, brominated vegetable oil, and Red 3 in food manufactured, delivered, and sold in the state.

The California School Food Safety Act was backed by Consumer Reports and the Environmental Working Group.

The California actions follow a 2021 California Office of Environmental Health Hazard Assessment that found many food dyes and colorants are known to make some children vulnerable to behavioral difficulties and decreased attention. This includes the six dyes covered by the newly enacted California School Food Safety Act.

"School meals provide essential nutrition and calories for countless children each day," said Tasha Stoiber, Ph.D., Environmental Working Group senior scientist. "Kids deserve wholesome foods that enhance their learning rather than detract from it, and parents need to feel confident schools are offering safe and nutritious meals."

Thousands of chemicals are allowed for use in food sold in the U.S. Many that the Food and Drug Administration has reviewed have not been reevaluated for decades, even when new science is available. For instance, according to research by the two consumer groups backing the California law:

● Red 40 has not been evaluated by the FDA for health risks since 1971. Many studies show it may pose a risk to brain development in children, hyperactivity and even cancer.

● Yellow 5 has been approved for use since 1931. The FDA affirmed its use with good manufacturing practices in 1969.

● Yellow 6 was approved for use in 1931, and the FDA reaffirmed its approval in 1986.

● Blue 1 has been approved for use since 1931. The FDA hasn't taken another look at it since 1969.

● Blue 2 was last approved in 1983.

● Green 3 has been allowed for use since 1931 and hasn't been reaffirmed since 1982.

Ronholm added: "California's landmark new law will help ensure that kids are not exposed to harmful dyes in food at schools that can endanger their health. Consumer Reports applauds Assemblymember Gabriel for championing this critical food safety legislation and thanks Governor Newsom for signing it into law."

Children have lower tolerance levels to chemical exposure than adults, and their developing bodies make them especially vulnerable.

"Why should schools serve food with harmful chemicals that can jeopardize children's health?" said Melanie Benesh, EWG's vice president for government affairs.

"These substances can pose serious risks to vulnerable children. It's crucial we protect students from exposure in a place where they should be nourished and able to focus on learning," Benesh said.

"We are grateful to Gov. Newsom for signing this bill into law, and we commend state lawmakers for acting decisively to remove these additives from school meals," she added.

Consumers consistently rank food chemical concerns ahead of other food safety issues. However, Consumer Reports and the Environmental Working Group do not think the FDA adequately regulates additives.

"The FDA continues to fail to keep us safe from harmful chemicals in our food," said Benesh. "In the absence of federal leadership, states like California are stepping up to ensure our safety from toxic chemicals in snacks and other food we and our families enjoy."

Copyright © 2024 Food Safety News, All rights reserved.

- **Citation (apa Style)**
  Flynn, D. (2024, October 4). Newsom signs law to prevent California schools from serving food with certain additives.*Food Safety News (USA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19BFF625D4371838.